

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

OLEG STEKOLNIKOV and LARISA KALININA,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, YEVGENY BUSHUYEV, GENNADY
REZNIKOV and EKATERINA REZNIKOV,

Defendants.

Index No.:

Date Purchased:

Plaintiffs designate Kings
County as the place of trial.

S U M M O N S

The basis of venue is
Plaintiffs' residence:
669 East 5th Street, Apt. 23
Brooklyn, New York

To the above named Defendants:

YOU ARE HEREBY SUMMONED to appear in this action in the Supreme Court of the State of New York, County of Kings, at the office of the Clerk of the Court at 360 Adams Street, Brooklyn, New York, within the time provided by law as noted below and to file your answer in this action with the Clerk of this Court. In case of your failure to answer this summons, a judgment by default will be taken out against you for the relief demanded in the complaint, together with the costs of this action.

NOTE: The law provides that:

(1) If this summons is served by its delivery to you personally within the County of , you must answer within 20 days after such service; or

(2) If this summons is served by delivery to any person other than you personally, or is served outside the County of or by publication or by any means other than personal delivery to you within the County of Kings, you are allowed 30 days after proof of service thereof is filed with the Clerk of this Court within which to answer.

Dated: Brooklyn, New York
December 28, 2012

ALAN BLUMEN, P.C.

Attorneys for Plaintiffs
2753 Coney Island Avenue, Suite 204
Brooklyn, New York 11235
(718) 618-0462

THE CITY OF NEW YORK
NEW YORK CITY POLICE
DEPARTMENT
100 Church Street
New York, New York 10007

YEVGENY BUSHUYEV
NYPD Precinct 61
2575 Coney Island Avenue
Brooklyn, New York 11223

GENNADY REZNIKOV
82 West End Avenue
Brooklyn, New York 11235

EKATERINA REZNIKOV
82 West End Avenue
Brooklyn, New York 11235

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

OLEG STEKOLNIKOV and LARISA KALININA,

Index No.:

Plaintiffs,

VERIFIED
COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, YEVGENY BUSHUYEV, GENNADY
REZNIKOV and EKATERINA REZNIKOV,

Defendants.

Plaintiffs, OLEG STEKOLNIKOV and LARISA KALININA, by their attorneys, ALAN BLUMEN, P.C., as and for their Verified Complaint, respectfully allege, upon information and belief:

1. Plaintiff, OLEG STEKOLNIKOV, was and still is a resident of the County of Kings, City and State of New York.
2. Plaintiff, LARISA KALININA, was and still is a resident of the County of Kings, City and State of New York.
3. Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. Defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is an agency of the defendant, THE CITY OF NEW YORK.
5. Defendant, NEW YORK CITY POLICE DEPARTMENT, was and still is

a department of City of New York.

6. Defendant, YEVGENY BUSHUYEV, was and still is, an employee of the defendant, NEW YORK CITY POLICE DEPARTMENT.

7. Defendant, GENNADY REZNIKOV, was and still is a resident of the County of Kings, City and State of New York.

8. Defendant, EKATERINA REZNIKOV, was and still is a resident of the County of Kings, City and State of New York.

9. On or about September 30, 2011, at approximately 6:30pm, OLEG STEKOLNIKOV and LARISA KALININA were lawfully residing in the basement apartment of certain premises known as 82 West End Avenue, Brooklyn, New York.

10. On or about September 30, 2011, plaintiffs resided in the basement apartment of the premises known as 82 West End Avenue, Brooklyn, New York pursuant to an oral lease agreement with the landlord-defendants GENNADY REZNIKOV and EKATERINA REZNIKOV.

11. On or about September 30, 2011, due to the damage sustained by the landlord's house during hurricane Irene in late August of 2011, landlord-defendants asked plaintiffs to vacate the premises.

12. On or about September 30, 2011, plaintiffs found another apartment and requested the landlords to refund security deposit prior to moving out.

13. On or about September 30, 2011, landlord-defendants refused to refund the security deposit to the plaintiffs.

14. On or about September 30, 2011, and upon information and belief,

landlord-defendants, GENNADY REZNIKOV and EKATERINA REZNIKOV, called 911 and intentionally misinformed the New York City Police Department that Plaintiffs OLEG STEKOLNIKOV and LARISA KALININA trespassed on property known as 82 West End Avenue, Brooklyn, New York.

15. On or about September 30, 2011, police officers from 61 Precinct of The New York City Police Department responded to landlord-defendants' call.

16. On or about September 30, 2011, YEVGENY BUSHUYEV, one of the police officers who responded to the above-referred call, observed both claimants inside the basement apartment of the premises known as 82 West End Avenue, Brooklyn, New York.

17. On or about September 30, 2011, Ekaterina Reznikov informed Officer YEVGENY BUSHUYEV that she was the owner of property known as 82 West End Avenue, Brooklyn, New York, and plaintiffs did not have permission to enter and remain in her house.

18. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department, without warrant and without plaintiffs' permission, used excessive force to enter plaintiffs' basement apartment and arrested both plaintiffs.

19. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers from the 61st Precinct used unreasonable physical force and Pepper Spray to arrest and detain OLEG STEKOLNIKOV and LARISA KALININA.

20. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers brought both plaintiffs to the 61st Precinct.

21. On or about September 30, 2011, plaintiffs, OLEG STEKOLNIKOV and

LARISA KALININA, while in custody of the New York City Police Department, informed police officer YEVGENY BUSHUYEV that they were lawful residents of premises known as 82 West End Avenue, Brooklyn, New York.

22. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers processed and released the plaintiffs with Desk Appearance Tickets that charged both plaintiffs with criminal acts of Trespass and Resisting Arrest.

23. Plaintiffs, appeared in Kings County Criminal Court, Part AP-4, and entered pleas of not guilty to criminal complaints alleging criminal trespass and resisting arrest under Docket No: 2011KN086745 (Stekolnikov Complaint) and Docket No.: 2011KN086488 (Kalinina Complaint).

24. Despite the order of the Court that allowed Plaintiffs to return to their apartment with officers at 61st Precinct to retrieve their personal property, the defendant-landlords, GENNADY REZNIKOV and EKATERINA REZNIKOV, did not allow plaintiffs to access their basement apartment.

25. Upon information and belief, defendant-landlords, GENNADY REZNIKOV and EKATERINA REZNIKOV, destroyed, disposed or caused to be disposed of all personal property that plaintiffs owned on or about September 30, 2011.

26. Defendant-landlords, GENNADY REZNIKOV and EKATERINA REZNIKOV, did not refund plaintiff's security deposit.

27. The defense counsel presented exculpatory evidence to the Kings County District Attorney's office that included a video tape of landlord-defendants.

28. Upon review and investigation of the evidence in these criminal cases,

District Attorney's office moved to dismiss both criminal complaints.

29. On or about June 19, 2012, both criminal cases were dismissed.

30. That on September 17, 2012, a Notice of Claim herein, pursuant to the statute as in such cases made and provided, was duly served on the office of the Comptroller, and that said defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, has failed, refused and neglected to make any adjustments or payments for thirty (30) days after the due presentation of the Notice of Claim and that this action has been commenced within one (1) year and ninety (90) days after the cause of action accrued.

AS AND FOR THE FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF OLEG STEKOLNIKOV AGAINST DEFENDANTS THE CITY
OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND YEVGENY
BUSHUYEV FOR ASSAULT

31. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated "1" through "30" inclusive with the same force and effect as if hereinafter set forth at length.

32. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of The New York City Police Department, by acting in threatening and menacing manner, intentionally placed plaintiff OLEG STEKOLNIKOV in apprehension of imminent harmful contact.

33. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of The New York City Police Department, by acting in threatening and menacing manner, intentionally placed plaintiff OLEG STEKOLNIKOV in apprehension of imminent offensive contact.

34. On or about September 30, 2011, plaintiff, OLEG STEKOLNIKOV, observed police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department act in threatening and menacing manner and believed that harmful and offensive contact with plaintiff's body was imminent.

35. As a result of the actions of police officer YEVGENY BUSHUYEV and other arresting officers, OLEG STEKOLNIKOV was injured.

36. This action falls within one or more of the exceptions set forth in CPLR 1602.

37. The aforesaid occurrence and resulting injuries to the plaintiff were due solely to the intentional acts of the defendants.

38. By reason of the foregoing, plaintiff, OLEG STEKOLNIKOV has been damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of the this action.

AS AND FOR THE SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF OLEG STEKOLNIKOV AGAINST DEFENDANTS THE CITY
OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND YEVGENY
BUSHUYEV FOR BATTERY

39. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated "1" through "30" inclusive with the same force and effect as if hereinafter set forth at length.

40. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department intentionally used physical

force and made physical contact with the person of the plaintiff, OLEG STEKOLNIKOV.

41. On or about September 30, 2011, plaintiff, OLEG STEKOLNIKOV, did not give permission to police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department use physical force against him.

42. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department used excessive force in affecting arrest of plaintiff OLEG STEKOLNIKOV.

43. As a result of the actions of police officer YEVGENY BUSHUYEV and other arresting officers, OLEG STEKOLNIKOV was injured.

44. The aforesaid occurrence and resulting injuries to the plaintiff were due solely to the intentional acts of the defendants.

45. By reason of the foregoing, plaintiff, OLEG STEKOLNIKOV has been damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of the this action.

AS AND FOR THE THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF OLEG STEKOLNIKOV AGAINST DEFENDANTS THE CITY
OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND YEVGENY
BUSHUYEV FOR FALSE IMPRISONMENT

46. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated "1" through "30" inclusive with the same force and effect as if hereinafter set forth at length.

47. On or about September 30, 2011, police officer YEVGENY BUSHUYEV

and other arresting officers of the New York City Police Department intentionally and without a right to do so, arrested plaintiff, OLEG STEKOLNIKOV.

48. On or about September 30, 2011, plaintiff, OLEG STEKOLNIKOV, was aware that he was being arrested and taken into custody.

49. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department did not have a reasonable cause to arrest plaintiff, OLEG STEKOLNIKOV.

50. As a result of the actions of police officer YEVGENY BUSHUYEV and other arresting officers, OLEG STEKOLNIKOV was injured.

51. The aforesaid occurrence and resulting injuries to the plaintiff were due solely to the intentional acts of the defendants.

52. By reason of the foregoing, plaintiff, OLEG STEKOLNIKOV has been damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of the this action.

AS AND FOR THE FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF OLEG STEKOLNIKOV AGAINST DEFENDANTS THE CITY
OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, YEVGENY BUSHUYEV,
GENNADY REZNIKOV AND EKATERINA REZNIKOV FOR MALICIOUS PROSECUTION

53. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated "1" through "30" inclusive with the same force and effect as if hereinafter set forth at length.

54. On or about September 30, 2011, defendants GENNADY REZNIKOV

and EKATERINA REZNIKOV, intentionally and with malice misinformed police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department that plaintiff OLEG STEKOLNIKOV was trespassing on property known as 82 West End Avenue, Brooklyn, New York.

55. On or about September 30, 2011, defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, acted with intent to have YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department to arrest plaintiff OLEG STEKOLNIKOV.

56. On or about September 30, 2011, defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, acted with intent to have YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department initiate a judicial criminal proceeding against plaintiff, OLEG STEKOLNIKOV.

57. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department, without probable cause, initiated a judicial criminal proceeding against plaintiff, OLEG STEKOLNIKOV, in the State of New York Criminal Court for the County of Kings under Docket Number: 2011KN086745.

58. On or about June 19, 2012, the above-referred judicial criminal proceeding against plaintiff OLEG STEKOLNIKOV was dismissed.

59. As a result of the actions of GENNADY REZNIKOV, EKATERINA REZNIKOV, police officer YEVGENY BUSHUYEV and other arresting officers of THE NEW YORK CITY POLICE DEPARTMENT, plaintiff, OLEG STEKOLNIKOV, was injured.

60. The aforesaid occurrence and resulting injuries to the plaintiff were due

solely to the intentional acts of the defendants.

61. By reason of the foregoing, plaintiff, OLEG STEKOLNIKOV has been damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of the this action.

AS AND FOR THE FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF OLEG STEKOLNIKOV AGAINST DEFENDANTS GENNADY
REZNIKOV AND EKATERINA REZNIKOV FOR WRONGFUL EVICTION AND
CONVERSION

62. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated "1" through "30" inclusive with the same force and effect as if hereinafter set forth at length.

63. On or about September 30, 2011, landlord-defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, entered the basement apartment of 82 West End Avenue, Brooklyn, New York without serving upon plaintiff-tenant, OLEG STEKOLNIKOV, a notice of eviction.

64. On or about September 30, 2011, landlord-defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, intentionally and with malice misinformed NEW YORK CITY POLICE DEPARTMENT that plaintiff, OLEG STEKOLNIKOV, was trespassing on their property.

65. On or about September 30, 2011, landlord-defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, used NEW YORK CITY POLICE DEPARMENT to wrongfully evict tenant plaintiff OLEG STEKOLNIKOV from his basement apartment at 82

West End Avenue, Brooklyn, New York.

66. On or about September 30, 2011, and following the arrest of plaintiff OLEG STEKOLNIKOV, landlord-defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, entered the premises of the basement apartment of 82 West End Avenue, Brooklyn, New York and without authority and intentionally removed, converted and took control without permission of all personal belongings of the plaintiff.

67. As a result of the actions of GENNADY REZNIKOV and EKATERINA REZNIKOV, plaintiff, OLEG STEKOLNIKOV, was wrongfully ejected from a leasehold and sustained monetary damages and lost personal property.

68. The aforesaid occurrence and resulting damages to the plaintiff were due solely to the intentional acts of the defendants.

69. Pursuant to Real Property Actions and Proceedings Law, Section 853, plaintiff, OLEG STEKOLNIKOV, hereby asserts a claim for treble damages against landlord defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, for wrongful eviction.

70. By reason of the foregoing, plaintiff, OLEG STEKOLNIKOV has been damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of the this action.

AS AND FOR THE SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF LARISA KALININA AGAINST DEFENDANTS THE CITY OF
NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND YEVGENY BUSHUYEV
FOR ASSAULT

71. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated "1" through "30" inclusive with the same force and effect as if hereinafter

set forth at length.

72. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of The New York City Police Department, by acting in threatening and menacing manner, intentionally placed plaintiff LARISA KALININA in apprehension of imminent harmful contact.

73. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of The New York City Police Department, by acting in threatening and menacing manner, intentionally placed plaintiff LARISA KALININA in apprehension of imminent offensive contact.

74. On or about September 30, 2011, plaintiff, OLEG STEKOLNIKOV, observed police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department act in threatening and menacing manner and believed that harmful and offensive contact with plaintiff's body was imminent.

75. As a result of the actions of police officer YEVGENY BUSHUYEV and other arresting officers, LARISA KALININA was injured.

76. This action falls within one or more of the exceptions set forth in CPLR 1602.

77. The aforesaid occurrence and resulting injuries to the plaintiff were due solely to the intentional acts of the defendants.

78. By reason of the foregoing, plaintiff, LARISA KALININA, has been damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of

the this action.

AS AND FOR THE SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF LARISA KALININA AGAINST DEFENDANTS THE CITY OF
NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND YEVGENY BUSHUYEV
FOR BATTERY

79. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated “1” through “30” inclusive with the same force and effect as if hereinafter set forth at length.

80. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department intentionally used physical force and made physical contact with the person of the plaintiff, LARISA KALININA.

81. On or about September 30, 2011, plaintiff, LARISA KALININA, did not give permission to police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department use physical force against him.

82. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department used excessive force in affecting arrest of plaintiff LARISA KALININA.

83. As a result of the actions of police officer YEVGENY BUSHUYEV and other arresting officers, LARISA KALININA was injured.

84. The aforesaid occurrence and resulting injuries to the plaintiff were due solely to the intentional acts of the defendants.

85. By reason of the foregoing, plaintiff, LARISA KALININA has been damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts

which would otherwise have jurisdiction herein, said amount to be determined upon the trial of the this action.

AS AND FOR THE EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF LARISA KALININA AGAINST DEFENDANTS THE CITY OF
NEW YORK, NEW YORK CITY POLICE DEPARTMENT AND YEVGENY BUSHUYEV
FOR FALSE IMPRISONMENT

86. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated “1” through “30” inclusive with the same force and effect as if hereinafter set forth at length.

87. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department intentionally and without a right to do so, arrested plaintiff, LARISA KALININA.

88. On or about September 30, 2011, plaintiff, LARISA KALININA, was aware that he was being arrested and taken into custody.

89. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department did not have a reasonable cause to arrest plaintiff, LARISA KALININA.

90. As a result of the actions of police officer YEVGENY BUSHUYEV and other arresting officers, LARISA KALININA was injured.

91. The aforesaid occurrence and resulting injuries to the plaintiff were due solely to the intentional acts of the defendants.

92. By reason of the foregoing, plaintiff, LARISA KALININA has been damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of

the this action.

AS AND FOR THE NINTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF LARISA KALININA AGAINST DEFENDANTS THE CITY OF
NEW YORK, NEW YORK CITY POLICE DEPARTMENT, YEVGENY BUSHUYEV,
GENNADY REZNIKOV AND EKATERINA REZNIKOV FOR MALICIOUS PROSECUTION

93. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated "1" through "30" inclusive with the same force and effect as if hereinafter set forth at length.

94. On or about September 30, 2011, defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, intentionally and with malice misinformed police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department that plaintiff LARISA KALININA was trespassing on property known as 82 West End Avenue, Brooklyn, New York.

95. On or about September 30, 2011, defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, acted with intent to have YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department to arrest plaintiff LARISA KALININA.

96. On or about September 30, 2011, defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, acted with intent to have YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department initiate a judicial criminal proceeding against plaintiff, LARISA KALININA.

97. On or about September 30, 2011, police officer YEVGENY BUSHUYEV and other arresting officers of the New York City Police Department, without probable cause,

initiated a judicial criminal proceeding against plaintiff, LARISA KALININA, in the State of New York Criminal Court for the County of Kings under Docket Number: 2011KN086488.

98. On or about June 19, 2012, the above-referred judicial criminal proceeding against plaintiff LARISA KALININA was dismissed.

99. As a result of the actions of GENNADY REZNIKOV, EKATERINA REZNIKOV, police officer YEVGENY BUSHUYEV and other arresting officers of THE NEW YORK CITY POLICE DEPARTMENT, plaintiff, LARISA KALININA, was injured.

100. The aforesaid occurrence and resulting injuries to the plaintiff were due solely to the intentional acts of the defendants.

101. By reason of the foregoing, plaintiff, LARISA KALININA has been damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of the this action.

AS AND FOR THE TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF LARISA KALININA AGAINST DEFENDANTS GENNADY
REZNIKOV AND EKATERINA REZNIKOV FOR WRONGFUL EVICTION

102. Plaintiffs repeat and reallege each and every allegation contained in the paragraphs designated "1" through "30" inclusive with the same force and effect as if hereinafter set forth at length.

103. On or about September 30, 2011, landlord-defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, entered the basement apartment of 82 West End Avenue, Brooklyn, New York without serving upon plaintiff-tenant, LARISA KALININA, a notice of eviction.

104. On or about September 30, 2011, landlord-defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, intentionally and with malice misinformed NEW YORK CITY POLICE DEPARTMENT that plaintiff, LARISA KALININA, was trespassing on their property.

105. On or about September 30, 2011, landlord-defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, used NEW YORK CITY POLICE DEPARTMENT to wrongfully evict tenant plaintiff LARISA KALININA from his basement apartment at 82 West End Avenue, Brooklyn, New York.

106. On or about September 30, 2011, and following the arrest of plaintiff OLEG STEKOLNIKOV, landlord-defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, entered the premises of the basement apartment of 82 West End Avenue, Brooklyn, New York and without authority and intentionally removed, converted and took control without permission of all personal belongings of the plaintiff.

107. As a result of the actions of GENNADY REZNIKOV and EKATERINA REZNIKOV, plaintiff, LARISA KALININA, was wrongfully ejected from a leasehold and sustained monetary damages and lost personal property.

108. The aforesaid occurrence and resulting damages to the plaintiff were due solely to the intentional acts of the defendants.

109. Pursuant to Real Property Actions and Proceedings Law, Section 853, plaintiff, LARISA KALININA, hereby asserts a claim for treble damages against landlord defendants GENNADY REZNIKOV and EKATERINA REZNIKOV, for wrongful eviction.

110. By reason of the foregoing, plaintiff, LARISA KALININA has been

damaged in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of the this action.

WHEREFORE, plaintiff, OLEG STEKOLNIKOV demands judgment against the defendants on the First, Second, Third, Fourth, and Fifth Causes of Action in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action together with interest, costs and disbursements of this action; plaintiff, LARISA KALININA demands judgment against the defendants on the Sixth, Seventh, Eighth, Ninth and Tenth Causes of Action in the amount in excess of the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action together with interest, costs and disbursements of this action.

Dated: Brooklyn, New York
December 28, 2012



Alan Blumen

ALAN BLUMEN, P.C.
Attorneys for Plaintiffs
OLEG STEKOLNIKOV and
LARISA KALININA
2753 Coney Island Avenue, Suite 204
Brooklyn, New York 11235
(718) 618-0462

INDIVIDUAL VERIFICATION

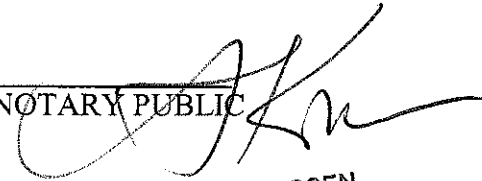
STATE OF NEW YORK)
) SS:
COUNTY OF *Kings*)

Aleg Sterodnikov , being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing VERIFIED COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



Sworn to before me this
28 day of *Dec* . , 20*12*

NOTARY PUBLIC


ANATOLY KISSEN
Notary Public, State of New York
No. 02KI6108381
Qualified in Kings County
Commission Expires April 19, 20 *16*

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF *Kings*) SS:

Larisa Kalinina, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing VERIFIED COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



Sworn to before me this
28 day of *Dec*, 20*12*


NOTARY PUBLIC

ANATOLY KISSEN
Notary Public, State of New York
No. 02KI6108381
Qualified in Kings County
Commission Expires April 19, 20 16

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

OLEG STEKOLNIKOV and LARISA KALININA,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, YEVGENY BUSHUYEV, GENNADY
REZNIKOV and EKATERINA REZNIKOV,

Defendants.

SUMMONS and COMPLAINT

ALAN BLUMEN, P.C.
Attorneys for Plaintiffs
2753 Coney Island Avenue, Suite 204
Brooklyn, New York 11235
(718) 618-0462